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Case Number: 26NNCV01440 Hearing Date: September 11, 2026 Dept: T

Rudolph

Paulus vs. City Of Monrovia

Demurrer

to Plaintiff's Complaint for Damages

Moving Party: Defendant

City of Monrovia

Responding Party: None

Tentative Ruling: Sustain

BACKGROUND

On February 27, 2026, Plaintiff Rudolph Paulus ("Plaintiff") filed a form complaint for damages against Defendant City of Monrovia ("Defendant") and Doe defendants 1 to 20, alleging the following causes of action: (1) Premises Liability (Count One—Negligence); (2) Premises Liability (Count Three—Dangerous Condition of Public Property); and (3) General Negligence.

Defendant now demurs to the negligence causes of action for failure to state facts sufficient to constitute a cause of action against Defendant as a public entity.

No opposition was filed.

MOVING

PARTY POSITION

Defendant

argues that the first and third causes of action fail as a matter of law because there is no statutory basis for these negligence causes of action asserted against it, and as a public entity cannot be held liable for common law negligence absent express statutory authorization. In addition, Defendant argues that these causes of action are duplicative of Plaintiff's second cause of action for premises liability based on a dangerous condition of public property. Defendant also argues that leave to amend should be denied, as Plaintiff cannot cure the defects in these negligence causes of action given the statutory requirements.

OPPOSITION

No

opposition was filed.

REPLY

No reply was filed.

ANALYSIS

I. Legal

Standard

A demurrer is a pleading used to test the legal sufficiency of other pleadings. It raises issues of law, not fact, regarding the form or content of the opposing party's pleading (complaint, answer or cross-complaint). (Code Civ. Proc. §§ 422.10, 589; see, also, *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) It is not the function of the demurrer to challenge the truthfulness of the complaint; and for purposes of the ruling on the demurrer, all facts pleaded in the complaint are assumed to be true. (*Donabedian*, 116 Cal.App.4th at p. 994.)

The general rule is that a plaintiff need only allege ultimate facts, not evidentiary facts. (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550.) "All that is required of

a plaintiff, as a matter of pleading, even as against a special demurrer, is that his complaint set forth the essential facts of the case with reasonable precision and with sufficient particularity to acquaint the defendant with the nature, source and extent of his cause of action.” (Rannard v. Lockheed Aircraft Corp. (1945) 26 Cal.2d 149, 156-57.)

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Id.; see Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) However, “[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend.” (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245.)

II. Meet and Confer

Based on the declaration of Defendant’s counsel D’Ahna D. Scott, counsel for the parties do not appear to have met and conferred by telephone, video conference, or in person prior to the filing of the instant demurrer. (See Scott Decl. ¶¶ 4–12.) Nevertheless, “[a] determination by the court that the meet and confer process was insufficient shall not be grounds to overrule or sustain a demurrer.” (Code Civ. Proc. § 430.41, subd. (a)(4).)

III. Discussion

As an initial matter, although the issue of whether Defendant’s demurrer was timely-filed remains unclear from the record, given defense counsel’s evidenced reliance on representations made by Plaintiff’s counsel as to the forthcoming filing of an amended complaint, as well as her evidenced good faith efforts to seek updates from Plaintiff’s counsel regarding the status of this filing through several attempted means of communication that were left without a response, the Court shall, in furtherance of justice, exercise its discretion to extend the time of filing for the instant demurrer and shall consider the demurrer on its merits. (See Scott Decl. ¶¶ 2–12; Jackson v. Doe (2011) 192 Cal.App.4th 742, 750 [“As noted above, section 473, subdivision (a)(1) allows the court to increase the time for filing a demurrer in

furtherance of justice and on any terms that may be proper.”].)

A. Public

Entity Liability

Except as

otherwise provided by statute, “[a] public entity is not liable for an injury, whether such injury arises out of an act or omission of the public entity or a public employee or any other person.”

(Gov. Code § 815(a).) “[T]his section ‘abolished all common law or judicially declared forms of liability for public entities, except for such liability as may be required by the federal or state Constitution. Thus, in the absence of some constitutional requirement, public entities may be liable only if a statute declares them to be liable’ [Citation.]” (Becerra v. County of Santa Cruz (1998) 68 Cal.App.4th 1450, 1457.)

Government

Code section 835 “prescribes the conditions under which a public entity may be held liable for injuries caused by a dangerous condition of public property. (Cordova v. City of Los Angeles (2015) 61 Cal.4th 1099, 1105.) Accordingly, “Section 835 is the sole statutory basis for a claim imposing liability on a public entity based on the condition of public property.”

(Brenner

v. City of El Cajon (2003)

113 Cal.App.4th 434, 438, emphasis added.)

Moreover,

“to state a cause of action [for government tort liability] every fact essential to the existence of statutory liability must be pleaded with particularity, including the existence of a statutory duty.” (Searcy v. Hemet Unified School Dist. (1986) 177 Cal.App.3d 792, 802.) “Duty cannot be alleged simply by stating ‘defendant had a duty under the law’; that is a conclusion of law, not an allegation of fact. The facts showing the existence of the claimed duty must be alleged. [Citations.] Since the duty of a governmental agency can only be created by statute or ‘enactment,’ the statute or ‘enactment’ claimed to establish the duty must at the very least be

identified.” (Ibid.)

In support of his first cause of action for premises liability based on negligence, Plaintiff alleges as follows: “Defendants City of Monrovia, and DOES 1-20, negligently owned, operated, possessed, maintained, leased, occupied and inspected the subject premises and/or the subject public crosswalk located at or near the intersection of Huntington Dr. and Myrtle Ave. Defendants owed a duty of care to Plaintiff, which included keeping the premises safe of dangerous conditions. Defendants breached their duty of care so carelessly and negligently, by the manner in which they possessed, maintained, controlled, inspected, and owned the premises.” (Compl., at p. 4.)

In support of his third cause of action for general negligence, Plaintiff alleges as follows: “On the aforementioned date, Defendants City of Monrovia, and DOES 1-20, negligently owned, operated, possessed, maintained, leased, occupied and inspected the subject premises and/or the subject public crosswalk located at or near the intersection of Huntington Dr. and Myrtle Ave. Defendants owed a duty of care to Plaintiff, which included keeping the premises safe of dangerous conditions. Defendants breached their duty of care so carelessly and negligently, by the manner in which they possessed, maintained, controlled, inspected, and owned the premises.” (Compl., at p. 5.) In addition, the Court notes that Plaintiff’s complaint acknowledged Defendant’s status as a public entity by his pleading compliance with the Government Claims Act.
(Ibid.)

As Defendant is a public entity, absent a mandatory duty created by statute, Defendant cannot be held liable for common law negligence. (McCarty v. State of California Dept. of Transp. (2008) 164 Cal.App.4th 955, 977 [“[A] public entity cannot be held liable for common law negligence.”].) Nor can Defendant be liable for common law premises liability as a public entity, when Section 835 provides the sole basis for this liability. (See Zelig v. County of Los Angeles (2002) 27 Cal.4th 1112, 1134 [addressing premises liability, the court “emphasize[d] that public entity liability in this regard is statutory.”].) Accordingly, as Plaintiff’s negligence causes of action are not based on the violation of any statutory duty, and as premises liability against a public entity is also statutory, the Court finds that Plaintiff’s complaint fails to state facts sufficient to support either negligence cause of action.

Therefore, as Plaintiff failed to oppose the motion and thereby failed to show the Court that the complaint can be amended successfully to state these causes of action, and as the complaint is devoid of any factual details that would otherwise suggest to the Court that a reasonable possibility exists of stating a good cause of action for negligence against Defendant, the demurrer is sustained without leave to amend.

RULING

Defendant

City of Monrovia's Demurrer to Plaintiff's Complaint is SUSTAINED without leave to amend the Premises Liability (Count One—Negligence) and General Negligence causes of action.